

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
DERRICK SHORT,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE ERIC R.
DAVIDSON, Tax No. 957516, SERGEANT CARRKU
GBAIN, Tax No. 951768, DETECTIVE MATTHEW
VARELA, Tax No. 964329, POLICE OFFICER MELISSA
ESPINAL, Tax No. 958557, POLICE OFFICER LEONARD
DISALVO, Tax No. 963486, and POLICE OFFICERS
JOHN DOES #s 1-10,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 24, 2023

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street,
New York, New York 10007
DETECTIVE ERIC R. DAVIDSON, Tax No. 957516, 83rd Precinct Detective Squad
SERGEANT CARRKU GBAIN, Tax No. 951768,
DETECTIVE MATTHEW VARELA, Tax No. 964329,
POLICE OFFICER MELISSA ESPINAL, Tax No. 958557,
POLICE OFFICER LEONARD DISALVO, Tax No. 963486

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

DERRICK SHORT,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE ERIC R.
DAVIDSON, Tax No. 957516, SERGEANT CARRKU
GBAIN, Tax No. 951768, DETECTIVE MATTHEW
VARELA, Tax No. 964329, POLICE OFFICER
MELISSA ESPINAL, Tax No. 958557, POLICE
OFFICER LEONARD DISALVO, Tax No. 963486, and
POLICE OFFICERS JOHN DOES #s 1-10,

Defendants.

----- X

Plaintiff DERRICK SHORT, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on October 24, 2020, at approximately 5:47 PM plaintiff was lawfully present in the vicinity of 480 Knickerbocker Avenue, Brooklyn, NY when defendants approached plaintiff and proceeded to assault, batter, and subject plaintiff to the use of excessive force without legal justification. Specifically, the defendants grabbed plaintiff, shot plaintiff three separate times with TASER guns, punched plaintiff's body several times in a very painful manner, handcuffed plaintiff in an unreasonably tight manner, twisted plaintiff's body in a manner that was intended to cause plaintiff pain throughout his body. The excessive force used by the officers knocked out one of plaintiff's teeth, caused plaintiff to bleed profusely from his mouth, left scars on plaintiff's chest, stomach, and on both of his upper thighs, and left scars on plaintiff's wrists, amongst other things. Plaintiff was transported to Woodhull Hospital via ambulance in handcuffs and leg shackles to have his injuries treated. At no time relevant herein did plaintiff pose a threat to the officers or behave in a manner where the officers would have reasonably believed it was necessary to shoot plaintiff with a Taser or subject plaintiff to any of the force used by the officers during the course of plaintiff's arrest. Plaintiff was deprived of his constitutional and common law rights when the individual defendants assaulted, battered, and used excessive force against plaintiff, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

1. Plaintiff DERRICK SHORT is a resident of the state of New Jersey.
2. Defendant DETECTIVE ERIC R. DAVIDSON, Tax No. 957516, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
3. Defendant DETECTIVE ERIC R. DAVIDSON, Tax No. 957516, was at all times relevant herein, assigned to the to the 83rd Precinct Detective Squad.
4. Defendant DETECTIVE ERIC R. DAVIDSON, Tax No. 957516, is being sued in his individual and official capacity.
5. Defendant SERGEANT CARRKU GBAIN, Tax No. 951768, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
6. Defendant SERGEANT CARRKU GBAIN, Tax No. 951768, was at all times relevant herein, assigned to the 83rd Precinct and is presently assigned to the 67th Precinct.
7. Defendant SERGEANT CARRKU GBAIN, Tax No. 951768, is being sued in his individual and official capacity.
8. Defendant DETECTIVE MATTHEW VARELA, Tax No. 964329, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
9. Defendant DETECTIVE MATTHEW VARELA, Tax No. 964329, is and was at all times relevant herein, assigned to the 83rd Precinct and is presently assigned to the Criminal Intelligence Section.
10. Defendant DETECTIVE MATTHEW VARELA, Tax No. 964329, is being sued in his individual and official capacity.
11. Defendant POLICE OFFICER MELISSA ESPINAL, Tax No. 958557, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
12. Defendant POLICE OFFICER MELISSA ESPINAL, Tax No. 958557, was at all times relevant herein, assigned to the 83rd Precinct and is presently assigned to the Warrant Section.
13. Defendant POLICE OFFICER MELISSA ESPINAL, Tax No. 958557, is being sued in his individual and official capacity.

14. Defendant POLICE OFFICER LEONARD DISALVO, Tax No. 963486, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

15. Defendant POLICE OFFICER LEONARD DISALVO, Tax No. 96348, was at all times relevant herein, assigned to the 83rd Precinct.

16. Defendant POLICE OFFICER LEONARD DISALVO, Tax No. 96348, is being sued in his individual and official capacity.

17. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

18. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

19. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

20. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

21. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

23. On October 24, 2020, at approximately 5:47 PM the defendant New York City Police Officers assaulted, battered, and used excessive force against plaintiff in the vicinity of 480 Knickerbocker Avenue, Brooklyn, NY while placing plaintiff under arrest and handcuffing him.

24. The police officers handcuffed and shackled plaintiff in an unreasonable tight manner causing pain to plaintiff's wrists and ankles.

25. Plaintiff asked the officers to loosen the handcuffs and shackles, but the officers refused to loosen the handcuffs and shackles.

26. On October 24, 2020, at approximately 5:47 PM plaintiff was lawfully present in the vicinity of 480 Knickerbocker Avenue, Brooklyn, NY when defendants approached plaintiff and proceeded to assault, batter, and subject plaintiff to the use of excessive force without legal justification.

27. Specifically, the defendants grabbed plaintiff, shot plaintiff three separate times with TASER guns, punched plaintiff's body several times in a very painful manner, handcuffed and shackled plaintiff in an unreasonably tight manner, and twisted plaintiff's body in a manner that was intended to cause plaintiff pain throughout his body.

28. The excessive force used by the officers caused plaintiff to lose consciousness for a very short time, knocked out one of plaintiff's teeth, caused plaintiff to bleed profusely from his mouth, left scars on plaintiff's chest, stomach, both of his upper thighs, and on plaintiff's wrists, amongst other things.

29. The injuries were severe and required medical treatment at a hospital, therefore plaintiff was transported to Woodhull Hospital via ambulance in handcuffs and leg shackles to have his injuries treated.

30. At no time relevant herein did plaintiff resist being arrested in any manner.

31. At no time relevant herein did plaintiff pose a threat to the officers or behave in a manner where the officers would have reasonably believed it was necessary to shoot plaintiff with a Taser or subject plaintiff to any of the force used by the officers during the course of plaintiff's arrest.

32. At no time relevant herein did any of the individually named defendant police officers intervene to prevent or stop the assault, battery, and use of excessive force by their fellow officers against plaintiff or prevent further injury to plaintiff.

33. By failing to intervene in order to stop the assault and battery, these defendants demonstrated a deliberate indifference to a substantial risk of serious harm to plaintiff.

34. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

35. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident plaintiff suffered significant and permanent physical injuries.

36. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful

behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

37. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally use excessive force against members of the public without probable cause.

38. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the use of excessive force against him because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers use excessive force against members of the public without probable cause.

39. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

40. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

41. The excessive force used against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Ad Fourteenth Amendment Rights

(Excessive Force)

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The use of excessive force by defendants by Shooting plaintiff with a TASER several times, repeatedly punching plaintiff throughout his body, applying the handcuffs and shackles in an unreasonably tight manner and twisting plaintiff's body in a manner that was

intended to cause plaintiff to suffer pain was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

44. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

SECOND CAUSE OF ACTION

Failure to Intervene

45. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

47. Defendants failed to intervene to prevent the unlawful conduct described herein.

48. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. Plaintiff was subjected to the use of excessive force without an objective factual legal basis to seize plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

52. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally subject individuals to the use of excessive force, without a reasonable legal basis to use force against an individual or probable cause to believe the individual had violated any law or ordinance.

53. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

54. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the use of excessive force against plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully use excessive force against members of the public when there is no factual basis to suspect the individual has committed a crime.

55. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

56. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

57. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, subject individuals to the use of excessive force without a specific, articulable factual basis to subject the individual to that level of force, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to use excessive force without a legal basis, there is a pattern, policy, custom or practice of New York City Police Officers subjecting individuals to the use of excessive force without a factual basis supporting a legal reason to do so.

58. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City

of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

59. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

60. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

61. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

62. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff DERRICK SHORT demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 24, 2023

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
October 24, 2023



DAVID M. HAZAN